

3.

CASE #	CASE NAME	HEARING NAME
CVRI2503707	CASTRO VS HBX, LLC	HEARING ON PETITION TO COMPEL ARBITRATION

Tentative Ruling: Appearances requested to discuss:

1. The unconscionability defense;
2. How the agreement applies to Crow Enterprises and Peyton's Place Vocational; and
3. The waiver argument—how does seeking to set aside a default constitute a waiver?

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505343	FOUSE VS E. MISHAN & SONS, INC.	MOTION PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT; MOTION TO FILE DOCUMENT UNDER SEAL

Tentative Ruling: Appearances requested to discuss:

1. Did defense counsel inquire of others at counsel's firm (and the client) as to knowledge of other actions in which similar class, collective or representative claims are made?
2. Definition of released parties—is there any person or entity that should be specifically named?
3. Release is not limited to the claims alleged in the complaint—should the complaint be amended to include any claims not alleged?
4. Should there be a Spanish version of the notice available to class members who are not fluent in English?
5. Include in the notice the full title and date of filing of the document to which the settlement agreement is attached (Declaration of Ryan J. Clarkson in Support of Plaintiff's Unopposed Motion for Preliminary Approval of Class Action Settlement filed May 28, 2026) and the court's street and web addresses.

Grant motion to file the document (Ex. H to the notice of lodging) under seal.